

// what is protected, by what, and where the gaps are

IP Protection Map

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Body Recode — what to register, what's automatic, what to keep secret v0.1 — For the IP lawyer to confirm. Not legal advice; AU-general.

The short version: **only one thing is actively registered — trade marks**. Everything else is either automatic (copyright) or protected by secrecy + contracts (trade secrets). The engine should **not** be patented.

Context: IP is owned by **Kade Robert Dunstone personally** (sole trader t/a Body Recode, ABN 90 535 525 708) and licensed down to the operating company / partners. **Trade marks not yet filed — the process has not started**. See the package cover note + `DECISIONS_NEEDED.md` (§2.3 lists what to file).

01 The five buckets

IP TYPE	WHAT IT COVERS HERE	REGISTER?	ACTION
Copyright	Source code, doctrine documents, prompts (as written expression), website + PDF + email content, UI and graphics	No — automatic	No register exists in Australia. Protection is automatic on creation. Keep dated records of authorship + apply © notices.
Trade marks	"Body Recode" wordmark, BR logo, "Powered by Body Recode" lockup, and any product names to protect	YES — the one active registration	Not started. File these — marks + classes below / in <code>DECISIONS_NEEDED</code> §2.3.
Trade secrets	The engine algorithms, the Doctrine (rules, safety floors, decision trees, banned-term lists), prompt libraries	No — never register	Protect by secrecy + contracts. Already covered by the NDA + the Deed's perpetual confidentiality on trade secrets. Maintain need-to-know internal access.
Patents	Inventions	No — deliberately avoid	AU is hostile to software/algorithm patents, and patenting forces public disclosure that would destroy trade-secret protection. Keep the engine secret instead.

IP TYPE	WHAT IT COVERS HERE	REGISTER?	ACTION
Registered design	The visual appearance of the product	Optional — likely skip	Rarely worth it for a web app. Revisit only if a distinctive UI needs protecting.

02 The two priorities

1. Trade marks — the only active registration. Copyright already protects the code and content for free, but it does **not** protect the brand name. Only a registered trade mark stops a competitor calling their platform “Body Recode.” - **Classes to file:** **9** (software/apps), **42** (SaaS — core), **41** (coaching/education/fitness — core), consider **44** (health/nutrition/wellness). IP lawyer to confirm the exact spread. - **What to file:** “Body Recode” **word mark first** (#1), then the **logo**; “Powered by Body Recode” is usually covered by the word mark. **Decision:** also protect product terms (e.g. “Fat Map”) — flag which. - **How:** let the IP lawyer run a **clearance search** before filing (cheaper than a rejected application). Rough cost ~\$250–330 per class per mark.

2. Engine + Doctrine = trade secret, not patent. This is the secret sauce and its protection is already built: the **Mutual NDA** (discovery stage) + the **IP Licence Deed** (perpetual confidentiality on trade secrets, no-reverse-engineer, no-training-corpus). Do **not** patent — it would publish the doctrine and is unlikely to be granted in AU anyway.

03 Two gaps to close (flag for the lawyer)

- **Contractor IP assignment.** In Australia, a **contractor** (not employee) owns the copyright in what they create **by default — not the hirer** — unless there’s a signed written assignment. If anyone other than Kade has touched the code, prompts, brand assets, or content, get **signed IP assignments** from them. Without this, the warranty to partners that “Body Recode owns the IP” (Deed cl 8.1) has a hole. → A `CONTRACTOR_IP_ASSIGNMENT_v0.1` **deed is now in the pack to close this** — each contributor signs one (covers past + future work). (*Action: list who has touched the code/content and get each to sign.*)
- **Business name.** Confirm “Body Recode” is an **ASIC-registered business name** (required to trade under it as a sole trader). Separate from a trade mark; a related box, not IP protection.

04 Questions for the IP lawyer

1. Confirm trade-mark **classes** and the **spread of names** (wordmark, logo, “Powered by Body Recode”, product terms).
 2. Confirm the **no-patent / trade-secret** strategy for the engine + Doctrine.
 3. Review **contractor IP assignment** status — is there exposure, and what assignment wording closes it?
 4. Confirm **copyright ownership chain** flows cleanly to Kade personally (then licensed down), given the personal-ownership / licence-to-company structure.
 5. Any **registered design** worth pursuing for the product UI? (Assume no unless flagged.)
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END — IP PROTECTION MAP v0.1

Related: `COVER_NOTE_TO_LEGAL.md` , `DECISIONS_NEEDED.md` , `PARTNER_IP_SUBLICENCE_DEED_v0.1.md` , `MUTUAL_NDA_v0.1.md`